

10. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
HEARING IN RE: JOINDER TO MOTION TO COMPEL ARBITRATION
FILED BY: HERNANDEZ, GILBERTO

TENTATIVE RULING:

Summary

This tentative ruling is related to the hearing on Defendant United Parcel Service, Inc's Motion to Compel Arbitration, Line 11.

Individual Defendants Gilberto Hernandez, Eric Hosier, Nicholas Resendes, and Rodney Humphreys's filed a Motion to Join to Defendant United Parcel Incorporated's Motion to Compel Arbitration on November 12, 2025. Plaintiffs Billy Evers, Darien Robinson, and Tracy Turner filed a statement of non-opposition to the joinder on March 6, 2026. As the joinder is not opposed, it is therefore **granted**.

11. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: UNITED PARCEL SERVICE, INC.

TENTATIVE RULING:

Before the Court is a motion by defendant United Parcel Service, Inc. to compel arbitration as to plaintiff Tracy Turner, in which individual defendants Gilberto Hernandez, Eric Hosier, Nicholas Rezendes, and Rodney Humphreys have joined (*see* Line 10). For the reasons set forth, the motion to compel arbitration as to plaintiff Tracy Turner, in which the individual defendants join, is **denied**.

Background

This action is filed by plaintiffs Billy Evers, Darien Robinson, and Tracy Turner against United Parcel Service, Inc. ("UPS") and four individual defendants, Gilberto Hernandez, Eric Hosier, Nicholas Rezendes, and Rodney Humphreys, employed by UPS. Plaintiffs allege causes of action for harassment, employment discrimination, retaliation, and failure to prevent harassment, discrimination, and retaliation.

The complaint was filed on June 20, 2024. The complaint was served on UPS on July 8, 2024. UPS filed an answer to the complaint on August 6, 2024. UPS was represented by the firm Jones Day until its current counsel, Seyfarth Shaw LLP, filed a substitution of counsel on June 10, 2025.

A case management conference was held on September 19, 2025. UPS filed an amended CMC statement on September 16, 2025 in which it stated, admittedly for the first time in a filed pleading, that it had discovered that plaintiff Tracy Turner had signed an arbitration agreement with UPS dated June 3, 2022 and that UPS intended to file a motion to compel Mr. Turner to arbitrate his claims by September 26, 2025. A notice of ruling on the September 19, 2025 CMC further indicates the parties agreed at the hearing that Mr. Turner would not assert that UPS waived its right to compel arbitration by UPS participating in discovery after the motion to compel arbitration was filed. (Meer Decl. Exh. I

[Not. of Ruling filed 9/19/2025].)

UPS filed its motion to compel arbitration on September 29, 2025, as September 26, 2025 was a court holiday. The motion only seeks to compel Tracy Turner to arbitrate his claims. The individual defendants filed a joinder in the motion on November 12, 2025. Plaintiffs oppose the motion.

Procedures for Enforcement of Arbitration Agreement

Whether the arbitration agreement is governed by the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* ("FAA") or by the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as waiver, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.) The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.)

Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, supra*, 8 Cal.5th at 125; Code Civ. Proc. § 1281 [written agreement to arbitrate "is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract"]; 9 U.S.C. § 2 [an arbitration agreement is "valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract . . ."].)

Analysis

The Arbitration Agreement UPS contends exists between the company and Tracy Turner is attached as Exhibit A to the Ditmars Declaration in support of the motion. It is dated June 3, 2022 and bears the name of Tracy Turner on the signature line in electronic characters. (Ditmars Decl. Exh. A.) Turner disputes that he signed the Arbitration Agreement.

Turner, however, argues that even if the Court were to find the Arbitration Agreement is genuine and was executed by him electronically, UPS has waived the right to compel him to arbitrate his claims by UPS's participation in litigation in the case for over a year while UPS and its counsel were in possession of the Arbitration Agreement and without raising arbitration as a defense.

A. Legal Standards for Proof of Waiver of Right to Arbitrate

In *Quach, supra*, 16 Cal.5th 562, the Court addressed the standard for showing a waiver of the right to arbitrate. The Court held the standard for demonstrating waiver in the arbitration context is the same standard whether the FAA or the CAA applies and is governed by "generally applicable state law contract principles." (*Id.* at 572, 576,) The Court explained, "To establish waiver under generally

applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Id.* at 584.) The "clear and convincing evidence" standard of proof requires a showing that it is "highly probable" that the fact is true. (*Id.* at 584.)

The Court addressed how waiver may be proven. The Court explained that "[t]he waiving party's knowledge of the right may be 'actual or constructive.'" [Citation omitted.] Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it. [Citation omitted.]" (*Id.* at 584 [emphasis added].) The exclusive focus of the determination of waiver is the waiving party's conduct; "neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant. [Citation omitted.]" (*Id.* at 585.) The Court also warned against courts conflating under the general catch-all term "waiver" distinct legal defenses such as forfeiture or estoppel. (*Id.* at 583-584.)

"Generally, constructive knowledge, 'means knowledge "that one using reasonable care or diligence should have, and therefore is attributed by law to a given person' [citation][, and] encompasses a variety of mental states, ranging from one who is deliberately indifferent in the face of an unjustifiably high risk of harm [citation] to one who merely should know of a dangerous condition [citation].'" [Citations omitted.] The existence of constructive knowledge is assessed by reference to an objective 'reasonable person' measure, 'since there is no other way to measure it.' [Citation omitted.]" (*Paslay v. State Farm General Ins. Co.* (2016) 248 Cal. App. 4th 639, 657-658 [addressing concept in the context of elder abuse statute by explaining the phrase "knew or should have known" "ordinarily conveys a requirement for actual or constructive knowledge. [Citation omitted.]"].)

B. UPS Had Constructive Knowledge of the Turner Arbitration Agreement

Mr. Meer explains the process UPS uses to collect relevant documents and transmit to counsel the electronic files relevant to a case when an action is filed against it. (Meer Decl. ¶¶ 5, 7, 8.) He states that UPS creates an in-house team responsible for each litigation matter, and that the in-house team is "deemed to have knowledge of the information needed to defend a given lawsuit." (Meer Decl. ¶ 5.) UPS sent its relevant electronic files to the Jones Day firm at the outset of the case, which in turn transmitted the electronic files of documents to Seyfarth when it was substituted as counsel for UPS. (Meer Decl. ¶¶ 5, 7, 8, 9, 22-24.) He states Seyfarth began producing documents to Plaintiffs' counsel in tranches starting June 13, 2025. (Meer Decl. ¶ 23.) A Seyfarth associated found the Tracy Turner arbitration agreement on August 7, 2025, and Seyfarth produced the document on August 8, 2025, within roughly seven weeks after it was substituted into the case. (Meer Decl. ¶¶ 23-24 and Exh. H.)

UPS presents evidence in the Harris and Ditmars Declarations that in 2022, the form of the Arbitration Agreement was presented to job applicants who were not subject to a collective bargaining agreement which would have its own arbitration agreement. (Harris Decl. ¶¶ 4, 5 [but stating the copy of the arbitration agreement attached as Exhibit A was presented to "all applicants in California in June 2022"]; Ditmars Decl. ¶ 12.) Harris declares that UPS protocol would be that an arbitration agreement signed by an employee be placed in the employee's personnel file. (Harris Decl. ¶ 15.) He

states if no such agreement was in the personnel file, then UPS would assume there was no arbitration agreement. (Harris Decl. ¶ 16.) (*See also* Meer Decl. ¶ 13 [documents sent by Harris to Turner in response to his request for his personnel file did not include the Arbitration Agreement].)

UPS's representative Ditmars testified at her deposition that in 2022, when Turner made his employment application, people seeking employment with UPS applied through upsjobs.com, an online portal operated at the time by a third party vendor (Equifax), and that in 2023 and 2024, UPS worked with its vendor who maintained the Automated Employment portal for UPS to identify documents from that portal that UPS wanted to keep and to move them to a UPS storage system to maintain the records. (Suppl. Meer Decl. Exh. M [Ditmars DT.]) The fact that there was a transition in the online employment application portal a year after Turner's employment began coupled with UPS's inability to locate an arbitration agreement in his personnel file, strongly suggest a further search outside the personnel file was warranted.

The Ditmars deposition testimony submitted with UPS's reply further supports that UPS had an obligation to search its records for an arbitration agreement rather than simply relying on the absence of the document in the personnel file alone. Ditmars testified clearly that "the job applicant on the Automated Employment system could not proceed with an application to work at UPS in June 2022 without agreement to this arbitration agreement." (Suppl. Meer Decl. Exh. M [Ditmars DT p. 140, ll. 14-20, p. 241, ll. 6-14].) The Automated Employment system was the system in effect when Turner applied for his job in June 2022. All UPS representatives insist that Turner's application could only be made in electronic form through that system, and that the arbitration agreement form was presented to all California applicants in June 2022 when Turner made his application.

UPS does not contest that the Arbitration Agreement it contends Turner signed was in its possession at all times, that it was turned over to the Jones Day firm at the inception of the case, and that UPS knew or should have known an arbitration agreement had to have been signed by Turner because he could not proceed with the electronic application process without signing it. (Suppl. Meer Decl. Exh. M [Ditmars DT p. 140, ll. 14-20, p. 241, ll. 6-14].) UPS offers no explanation for its failure to search anywhere other than the personnel file to try to find the arbitration agreement that Turner must have signed in order to complete his employment application. UPS argues knowing the "content" of the Arbitration Agreement is "not the same as having located a signed copy." (Reply, p. 5, ll. 14-15.) But UPS did not just know the content of the document; UPS knew that Turner could not have completed an employment application without signing the Arbitration Agreement. As Ditmars testified, he " 'could not have moved forward unless he answered every question that was required, clicked every box that was required, and landed on that arbitration step and completed it.' " (Reply, p. 3, ll. 10-17, citing Ditmars DT.)

Notably, there is no declaration by counsel from the Jones Day firm which represented UPS presumably shortly after UPS was served with the complaint on July 8, 2024 until June 9, 2025 and which was given the electronic files described in the Meer Declaration that were later turned over by Jones Day to Seyfarth when it took over UPS's representation. Current counsel Meer describes his experience representing UPS in other matters and asserts UPS would have raised the affirmative defense of arbitration in its answer if it knew of the Arbitration Agreement, so Meer concludes UPS corporate representatives and Jones Day did not know about that agreement. (Meer Decl. ¶ 15.) The evidence indicates that UPS made a search of its records to gather documents relevant to the

disputes which it turned over to Jones Day, which included the Turner Arbitration Agreement. There is no evidence that UPS or its counsel at the time made any search for an arbitration agreement in the UPS electronic files turned over to UPS, other than in the electronic personnel file, even though (a) the form of arbitration agreement was given to all applicants in California in June 2022 as part of the job application process, (b) Turner's employment application could not have been completed without him signing the Arbitration Agreement, and (c) UPS knew that it had shifted its Automated Employment portal between June 2023 and June 2024 and was saving and storing documents from that portal, the portal by which Turner made his application. (See Harris Decl. ¶¶ 4, 5; Ditmars Decl. ¶ 12 and Ditmars DT cited above.)

Based on the totality of the evidence before the Court, the facts and circumstances collectively support a finding that it is highly probable that UPS knew that an arbitration agreement existed covering Turner. Indeed, UPS could have made a motion to compel arbitration with all the facts and evidence it has presented in this motion based on the form of arbitration agreement Harris declares all unrepresented California applicants received with the online employment application and the Ditmars testimony that it was in effect impossible for a completed employment application to be made online without the applicant having first signed the arbitration agreement electronically, such that the existence of a fully completed online application supports that the Arbitration Agreement was also agreed to and electronically signed by Turner. (Cal. R. Ct. 3.1330; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [explaining moving party's initial burden].) Instead, the facts indicate UPS chose to litigate immediately and immediately propound written discovery to Turner.

C. Other Facts Evidencing Waiver Based on Conduct Inconsistent with Pursuit of Arbitration

UPS through the Jones Day firm filed an answer to the complaint on August 6, 2024 which did not include an affirmative defense asserting the existence of any arbitration agreement or challenging the Court's jurisdiction to determine the claims based on any arbitration agreement. (Meer Decl. Exh. C [8/6/2024 UPS Ans.].) UPS did not move to amend its answer (ever) or to compel Turner to arbitrate until September 2025, thirteen months after UPS first appeared. (See *Guess?, Inc. v. Superior Court* (2000) 79 Cal. App. 4th 553, 558 ["At a minimum, the failure to plead arbitration as an affirmative defense is an act inconsistent with the later assertion of a right to arbitrate."].) UPS's position that it will move to amend if the Court finds UPS has not waived its right to compel arbitration is not persuasive support for UPS not being aware of its right to arbitrate and engaging in conduct inconsistent with its intent to exercise that right.

Piplack v. In-N-Out Burgers (2023) 88 Cal.App.5th 1281 relied on by UPS is distinguishable. That case involved a PAGA action, and the defendant did not allege arbitration as an affirmative defense because at the time it filed its answer, binding California Supreme Court authority precluded arbitration of any PAGA claims. (*Id.* at 1289-1290.) The Court does not find *Khalatian v. Prime Time Shuttle, Inc.* (2015) 237 Cal.App.4th 651 and its statement that "[a]nswering the complaint does not result in waiver" persuasive, as the Court's analysis of waiver in that case was framed by the now-rejected *St. Agnes* analysis that required proof of prejudice to the party opposing arbitration. (*Id.* at 654 ["Plaintiff cannot demonstrate prejudice from the delay, which is determinative. [Citation omitted.]"], 662, 663 ["Because plaintiff demonstrated no prejudice from defendants' delay in moving

to compel arbitration, the [trial] court erred in finding waiver."].)

UPS also engaged in extensive discovery. (Durkin Decl. ¶ 10, and Exh. 9.) UPS did not merely respond to Plaintiff's discovery but immediately on answering served extensive written discovery requests, including interrogatories and requests for production, on Mr. Turner in 2024 to which Mr. Turner responded. (Durkin Decl. ¶ 10, and Exh. 9.) UPS served its discovery the same day it answered the complaint, apparently without any attempt to review the files UPS had gathered as relevant to the case or to perform a search of those files for an arbitration agreement despite the UPS policies and practical procedures that Ditmars has testified meant Turner had to have signed an arbitration agreement to complete his employment application in June 2022.

UPS appeared at three case management conferences between December 19, 2024 and April 14, 2025 and filed related CMC statements. UPS never asserted even the possible existence of an arbitration agreement or its willingness to participate in binding arbitration. (See Meer Decl. Exhs. D [UPS CMC Stmt filed 12/13/2024, indication, among other things, UPS was reserving the right to address bifurcation and expected to file a motion for summary judgment or summary adjudication], E [UPS CMC Stmt filed dated 1/13/2025], and F [Jt. CMC Stmt filed 4/9/2025].) It never attempted to assert the possibility an arbitration agreement existed and reserving its right to enforce it if found, even though (a) Meer attests UPS had a policy of enforcing arbitration agreements (Meer Decl. ¶¶ 15, 19), (b) UPS presented an arbitration agreement to each job applicant in California in June 2022, and (c) the Automated Employment application process required applicants to sign the arbitration agreement because their employment application could not proceed without execution of the arbitration agreement. (Meer Decl. Exhs. D, E, and F.) These facts are consistent with UPS electing not to pursue arbitration of Turner's claims despite the fact that it knew Turner had to have signed an arbitration agreement and could not have completed the application and employment process without having done so. (See Harris Decl. ¶¶ 4, 5; Ditmars Decl. ¶ 12 and Ditmars DT cited above.)

UPS turned over volumes of electronic records to the Jones Day firm identified and gathered by the UPS in-house team as relevant to the plaintiffs and their claims, as Meer explains. (Meer Decl. ¶¶ 7, 8, 20-24.) There is no evidence that UPS or Jones Day even made any attempt to search of the records UPS turned over to locate an arbitration agreement in the face of UPS having job application procedures that meant Turner applying for a job in June 2022 must have electronically signed an arbitration agreement because his electronic employment application could not proceed otherwise.

UPS did not move to compel arbitration for another seven weeks after it located the Arbitration Agreement. To this day, UPS has not made any attempt to amend its answer to the complaint to allege the Arbitration Agreement as an affirmative defense. The Court in *Quach* found a delay of 13 months before the defendant moved to compel arbitration one of the factors supporting its finding of waiver, in addition to the fact that the defendant propounded discovery requests to the plaintiff and failed to check any box in the CMC form indicating the defendant was willing to participate in arbitration. (*Quach, supra*, 16 Cal.5th at 586-587.) The Court rejected the argument that there was no waiver because the discovery the defendant obtained was information it could have gained in arbitration. (*Id.* at 587.)

While in *Quach*, the defendant had a copy of the plaintiff's signature page on the arbitration agreement, the defendant claimed that it had been unable to locate the complete arbitration

agreement until shortly before it moved to compel arbitration 13 months later. (*Id.* at 571, 586.) The Court in *Quach* was skeptical of the defendant's not having located the arbitration agreement in part for the same reasons the Court in this case is skeptical that UPS was not aware of the Arbitration Agreement; the human resources director in that case, like Ditmars and Harris here, provided evidence that during the time frame in which the plaintiff in *Quach* was employed, all employees were required to sign a binding arbitration agreement for employment-related disputes. (*Id.* at 586.) (See also *Campbell v. Sunshine Behavioral Health, LLC* (2024) 105 Cal.App.5th 419, 429-430.) As in *Campbell*, there is no evidence that the Arbitration Agreement could not have been accessed by a search of UPS's electronic files turned over to the Jones Day firm; the fact that Seyfarth was able to locate the document in a document review seven weeks after it became counsel of records indicates the document was accessible as part of the electronic records UPS gathered and turned over to counsel.

D. Conclusion: UPS Has Waived the Right to Compel Arbitration of Turner's Claims

The Court finds that there is clear and convincing evidence of waiver on this record. The Court therefore **denies** the motion to compel arbitration of Turner's claims against UPS and the individual defendants.

12. 9:00 AM CASE NUMBER: C24-01961

CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD

***HEARING ON MOTION IN RE: INTENTION TO MOVE TO SET ASIDE AND VACATE JUDGMENT FILED BY NATALIA HOWARD**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Natalia Howard's Motion to Set Aside Judgment and Motion for New Trial is **denied** as set forth herein.

Background

This is a landlord-tenant case where Plaintiff William Dedman served a three-day notice to pay rent or quit to Defendants pursuant to Code of Civil Procedure §§ (CCP) 1161(2) and 1161 (3). In lieu of pursuing an unlawful detainer action, Plaintiff William Dedman ("Plaintiff") entered into a stipulated agreement that allowed Defendants Brian Howard and Natalya Howard ("Defendant") to vacate the subject property on or before July 15, 2022 with certain conditions, which Plaintiff, at trial, alleged were violated. A default was entered against Defendant Brian Howard, who is Natalia Howard's former spouse. Defendant Natalya Howard chose to represent herself in all proceedings, including the jury trial.

The case was set for a court trial on January 23, 2026. On that date, Defendant demanded a trial by jury, even though she previously failed to post jury fees. The Court granted relief from her waiver of her right to a jury trial over Plaintiffs objection. A jury trial was set for January 26, 2026. Defendant filed a Motion for Leave to File a Cross-Complaint on December 17, 2025 which was set for hearing on May 20, 2026. However, Defendant did not seek ex parte relief for an order advancing that hearing or to continue the trial date until the first day of trial. Instead, Defendant requested a continuance of the